

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No. _____

-----X
THOMAS BALZARANO and FRANK GIANNATTASIO,

Date Filed: _____

Plaintiffs,

SUMMONS

-against-

THE CITY OF NEW YORK, ERIK CONTRERAS and
JOHN DOEs #1-2, being the fictitious names of New York
City police officers whose names are unknown to Plaintiff,

Pursuant to CPLR 504(3),
Plaintiff designates Queens
County as venue based upon
where the cause of action
arose.

Defendants.

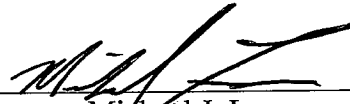
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TO THE ABOVE-NAMED DEFENDANT(S):

You are hereby summoned and required to serve upon Plaintiffs' attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 11, 2014

Yours, etc.,

Michael J, Larson, P.C.

By: 

Michael J. Larson

Attorneys for Plaintiffs

Thomas Balzarano and

Frank Giannattasio

401 Broadway, Suite 806

New York, New York 10013

(212) 528-0886

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK, Defendant
C/O Zachary Carter, Esq.
100 Church Street
New York, New York 10007

OFFICER ERIK CONTRERAS (Shield # 948808), Defendant
New York City Police Department
1 Police Plaza
New York, New York 10007

JOHN DOES 1-2, Defendants
C/O New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
THOMAS BALZARANO and FRANK GIANNATTASIO , Index No. _____

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, ERIK CONTRERAS, JOHN
DOEs #1-2, being the fictitious names of New York City
police officers whose names are unknown to Plaintiff,

Defendants.

-----X

Plaintiffs THOMAS BALZARANO and FRANK GIANNATTASIO, through
their counsel, for their complaint, state the following:

PARTIES

1. Plaintiff THOMAS BALZARANO is an individual who resides in Sound
Beach, New York.

2. Plaintiff FRANK GIANNATTASIO is an individual who resides in
Yapank, New York.

3. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.

4. Defendant Officer ERIK CONTRERAS is a police officer (Shield #
948808) employed by the NYPD, assigned to the 102nd Precinct, 87-34 118th Street,
Richmond Hill, NY 11418-2527, in Queens.

5. Defendant JOHN DOEs #1-2 are New York City police members whose
names and addresses are presently unknown to Plaintiff.

PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK

6. Plaintiffs have served timely Notice(s) of Claim upon Defendant CITY within 90 days after all causes of action described in this complaint arose that require the filing of a Notice of Claim as a prerequisite to commencing a lawsuit.

7. More than thirty days have elapsed since the service of the Notice(s) of Claim.

8. Defendant CITY and its comptroller have failed, neglected, and refused to pay, settle, and compromise the claims of Plaintiffs.

9. Plaintiffs have duly complied with all of the conditions precedent to the commencement of this action.

10. This action is being commenced within one year and ninety days after the happening of the events upon which claims are based and complies with all statutory requirements for timeliness.

FACTS

11. On January 12, 2013 at about 8:45: PM, Plaintiffs Thomas Balzarano and Frank Giannattasio were visiting a friend in Queens and Plaintiff Balzarano was lawfully standing outside his vehicle in the parking lot of CVS located at 126th Street and Hillside Avenue, Queens, New York.

12. While Plaintiff Balzarano was outside, Plaintiff Frank Giannattasio was getting something to eat inside of Paul Michael's Brick Oven Café at the same location.

13. On January 12, 2013 at approximately 8:45PM., Officer Erik Contreras

and JOHN DOEs #1-2 were New York City Police Officers (all collectively will be referred to as Defendant Police Officers), drove up, exited their police vehicles, approached Plaintiff Thomas Balzarano, threw him against his vehicle, handcuffed him and shouted “your being arrested for robbery”.

14. On January 12, 2013 at approximately 8:45PM, Defendant Police Officers approached Plaintiff Frank Giannattasio inside Paul Michael’s Brick Oven Cafe, handcuffed him and arrested him.

15. A reasonable person or police officer should have known that Plaintiffs had committed no crime.

16. Defendant Police Officers had no warrant to stop and arrest Plaintiffs.

17. Notwithstanding, Defendant Police Officers arrested Plaintiffs.

18. Prior to being handcuffed, Plaintiffs attempted to inform Defendant Police Officers that they had committed no crimes and that they did not want to be handcuffed and go to jail, but Plaintiffs went peacefully and submitted without resistance to the false arrest.

19. After being placed in the back of police cars and upon arrival to the 102th Precinct, Plaintiffs were subjected to a humiliating search and were deprived of all money and personal effects.

20. Plaintiffs were then incarcerated in a cell with criminals for about five (5) hours.

21. After approximately five (5) hours of being in the precinct cell, Plaintiffs were placed in the back of a police car and were transported to Central Booking Queens at approximately 2:00am.

22. At Central Booking, Plaintiffs were immediately placed in a filthy holding cell with approximately 15 other inmates.

23. Once plaintiffs' names were called, they were again searched, fingerprinted, and photographed and placed in a second crowded cell which held 25 other inmates.

24. At approximately 3:00am, plaintiffs were asked basic questions and moved to a third crowded cell that had no heat, mattresses or beds.

25. At approximately 10:00am, plaintiffs were moved to a fourth jail cell which had approximately 40 inmates inside and were there until approximately 9:00pm.

26. At approximately 11:00pm, plaintiffs were brought into the courtroom and were told that a criminal proceeding was being brought against them entitled "People of the State of New York v. Thomas Balzarano and Frank Giannattasio" in the Supreme Court of the State of New York, Queens County, under docket number 2013QN002406.

27. At approximately 12:00am, plaintiffs were removed from the courtroom and brought to a fifth overcrowded and filthy cell that had a clogged toilet.

28. At approximately 12:30am, plaintiffs were told they would be transferred to building C95 at Rikers Island where they could get the medical attention they requested.

29. At 1:00am, a bus to C95 was supposed to wait for plaintiffs but did not and plaintiffs both lay sick and vomiting in their cell until approximately 3:30am when they were placed on the bus.

30. At approximately 4:00am, the bus pulled up to C95 and the inmates were told that it was closed for the night and to go to the OBCC building which is part of

disciplinary, and not medical.

31. At approximately 5:00am, plaintiffs, still sick and vomiting, were placed in a sixth jail cell that held approximately 25 inmates.

32. At approximately 7:30am, plaintiffs were placed in an eighth jail cell for approximately seven hours and were again strip searched.

33. At approximately 2:30pm, plaintiffs were brought to the infirmary at OBCC and were told they needed to be transferred to C95.

34. Plaintiffs were placed in a ninth cell (transfer cell) from approximately 2:30pm to 5:30pm and received no medical attention.

35. At 5:30am, plaintiffs were handcuffed and brought to C95 where they were placed in a tenth cell that had approximately sixty inmates inside.

36. At approximately 7:15pm, plaintiffs' were brought to an open dorm in C95 and when asked if they were going to medical, were told, "no".

37. At approximately 2:30pm on January 15, 2013, plaintiffs were called to medical and were brought to their eleventh cell.

38. At approximately 3:10pm, plaintiffs, still sick and vomiting, were called out of their cell and were given medication.

39. At approximately 3:30pm, plaintiffs went back to the open dorm and received no further medication.

40. On January 15, 2013 all charges under docket number 2013QN002406 against Plaintiffs Thomas Balzarano and Frank Giannattasio were dismissed and sealed by Judge Brandt. Copies of the Certificate of Dispositions are annexed as Ex. A.

41. On January 16, 2013, at approximately 2:30am, plaintiffs were told they

were being released and were brought to a twelfth holding pen.

42. On January 16, 2013, at approximately 8:00am, plaintiffs were released after approximately 83 hours of incarceration and being subjected to humiliation and suffering mental anguish, sickness, annoyance, and inconvenience from being arrested, handcuffed, incarcerated, and not medically treated in jail.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

43. Plaintiffs repeat and re-allege every allegation in this complaint.

44. Defendant Police Officers intended to confine and completely confined Plaintiffs.

45. Plaintiffs were cognizant of the confinement.

46. Plaintiffs voiced strenuous objections to the confinement in which they did not consent.

47. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

48. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights

49. Defendant Police Officers violated Plaintiffs' civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

50. Pursuant to 42 U.S.C. § 1983, Plaintiffs are entitled to damages from Defendant Police Officers for violations of Plaintiffs' constitutionally protected civil

rights.

51. Defendant CITY has maintained a system of review of police conduct which is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

52. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiffs based upon improper reasons would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiffs and in falsely arresting Plaintiffs and others in the future.

53. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiffs are also entitled to damages from Defendant CITY for violations of Plaintiffs' constitutionally protected civil rights.

54. Finally, all Defendants are liable for paying Plaintiffs an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

55. Plaintiffs repeat and re-allege every allegation in this complaint.

56. Defendant Police Officers intended to confine and completely confined Plaintiffs.

57. Plaintiffs were cognizant of the confinement.

58. Plaintiffs voiced strenuous objections to the confinement in which they did not consent.

59. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.

60. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.

61. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.

62. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiffs.

THIRD CAUSE OF ACTION

(Battery)

63. Plaintiffs repeat and re-allege every allegation in this complaint.

64. Defendant Police Officers' acts were intentional.

65. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiffs amounting to the civil tort of battery.

66. Defendant Police Officers' acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.

67. Defendant CITY is, therefore, vicariously liable for the battery that Defendant police officers inflicted upon Plaintiffs.

68. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

69. Plaintiffs repeat and re-allege every allegation in this complaint.

70. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.

71. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiffs.

72. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.

73. Consequently, Defendant Police Officers are liable for negligence.

74. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiffs.

75. Defendant the CITY is, therefore, vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

76. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

77. Plaintiffs repeat and re-allege every allegation in this complaint.

78. Defendant the CITY had a duty to hire and retain competent police officers.

79. Defendant CITY knew, or should have known, that Defendant Police

Officers were unfit to be hired and retained as police officers of the New York City Police Department.

80. Defendant CITY breached its duty to hire and retain competent police officers.

81. As a result of the CITY's breach, Plaintiffs suffered damages.

82. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION

(Defamation)

83. Plaintiffs repeat and re-allege every allegation in this complaint.

84. Defendant Police Officers printed and/or uttered false and injurious statements concerning Plaintiffs.

85. The false statements accused Plaintiffs of having committed crime(s).

86. Defendant Police Officers published these false statements to third-parties.

87. Defendant Police Officers wrote and/or spoke the statements with malice, recklessness, negligence, and gross negligence.

88. Thus, Defendant Police Officers are liable for defamation per se.

89. Defendant Police Officers acted within the scope of their duty as police officers for Defendant CITY and in the interest of the CITY when they defamed Plaintiffs.

90. Defendant CITY is, therefore, vicariously liable for the defamation that Defendant Police Officers committed.

91. Thus, all Defendants are liable for defamation per se.

SEVENTH CAUSE OF ACTION

(Malicious Prosecution)

92. Plaintiffs repeat and re-allege every allegation in this complaint.

93. Defendants brought a prior criminal proceeding against Plaintiffs.

94. The prior criminal proceedings terminated in favor of Plaintiffs (where Plaintiffs were named as criminal defendants).

95. Defendant Police Officers lacked probable cause to handcuff, arrest, imprison, and prosecute Plaintiffs.

96. Defendant Police Officers had malice in prosecuting Plaintiffs in the prior criminal proceedings.

97. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted completely within their scope of employment as New York City police officers.

98. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiffs demand judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$1 million and, pursuant to 42 U.S.C. § 1988, attorney's fees, against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$1 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the

amount of \$1 million against all Defendants;

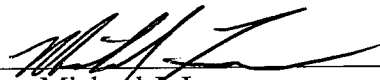
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$1 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$1 million against Defendant CITY;
- (f) on the Sixth Cause of Action (defamation), actual and punitive damages in the amount of \$1 million against Defendant CITY;
- (g) on the Seventh Cause of Action (malicious prosecution), actual and punitive damages in the amount of \$1 million; and
- (h) costs, disbursements, interest, and such other relief that is appropriate.

Dated: New York, New York
March 11, 2014

Yours, etc.,

MICHAEL J. LARSON, P.C.

By


Michael J. Larson

Attorney for Plaintiffs

**THOMAS BALZARANO and
FRANK GIANNATTASIO**

401 Broadway, Suite 806
New York, New York 10013
(212) 528-0886

EXHIBIT A

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF QUEENS

THE PEOPLE OF THE STATE OF NEW YORK
VS

CERTIFICATE OF DISPOSITION
NUMBER: 220633

BALZARANO, THOMAS J
Defendant

12/10/1984
Date of Birth

10 SUNNYSIDE DR
Address

1246509Z
NYSID Number

SOUND BEACH NY
City State Zip

01/12/2013
Date of Arrest/Issue

Docket Number: 2013QN002406

Summons No:

140.25
Arraignment Charges

Case Disposition Information:

Date Court Action
01/15/2013 DISMISSED

Judge Part
BRANDT, D C AP6

SEALED

pursuant to Section 160.50 of the CPL

NO FEE CERTIFICATION

GOVERNMENT AGENCY COUNSEL ASSIGNED

NO RECORD OF ATTORNEY READILY AVAILABLE. DEFENDANT STATES COUNSEL WAS ASSIGNED

SOURCE ACCUSATORY INSTRUMENT DOCKET BOOK/CRIMS CRC3030 [CRS963]

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN
THIS COURT.

WADDELL, A
COURT OFFICIAL SIGNATURE AND SEAL

01/17/2013
DATE

FEE: NONE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT
SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF QUEENS

CERTIFICATE OF DISPOSITION
NUMBER: 220632

THE PEOPLE OF THE STATE OF NEW YORK
VS

GIANNATTASIO, FRANK
Defendant

02/25/1989
Date of Birth

11 KARLS ROAD
Address

24914262
NYSID Number

YAPHANK NY
City State Zip

01/12/2013
Date of Arrest/Issue

Docket Number: 2013QN002407

Summons No:

140.25
Arraignment Charges

Case Disposition Information:

Date Court Action
01/15/2013 DISMISSED

Judge
BRANDT, D C

Part
AP6

SEALED

NO FEE CERTIFICATION

pursuant to Section 160.50 of the CPL

☐ GOVERNMENT AGENCY ☐ COUNSEL ASSIGNED
☐ NO RECORD OF ATTORNEY READILY AVAILABLE. DEFENDANT STATES COUNSEL WAS ASSIGNED
SOURCE ☐ ACCUSATORY INSTRUMENT ☐ DOCKET BOOK/CRIMS ☐ CRC3030 [CRS963]

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN
THIS COURT.

WADDELL, A
COURT OFFICIAL SIGNATURE AND SEAL

01/17/2013
DATE

FEE: NONE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT
SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

THOMAS BALZARANO and FRANK GIANNATTASIO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, ERIK CONTRERAS and JOHN DOES #1-2,
being the fictitious names of New York City police officers
whose names are unknown to Plaintiff,

Defendants.

SUMMONS and COMPLAINT

LAW OFFICE OF MICHAEL J. LARSON, P.C.

Attorneys for Plaintiffs

THOMAS BALZARANO and
FRANK GIANNATTASIO

**401 BROADWAY, SUITE 806
NEW YORK, NEW YORK 10013
TEL (212) 528-0886
FAX (212) 528-0887**

This office does not accept service of litigation papers by electronic means.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 11, 2014

Signature: _____

Name: Michael J. Larson, Esq